

trustees are construed to take not a fee simple, but an estate for the life of A. (*c*). And Sir W. Grant expressed himself in favor of a similar construction where the instrument was a deed (*d*); but it has since been decided that in the latter case a fee simple passes (*e*), unless it be quite clear upon the face of the deed itself that the words "during the life of A." were meant to be in the deed, and were wanting through inadvertence (*f*). Of course there can be no such restriction of the estate by implication where the natural sense of the words admits of a fair and reasonable construction; as if before the late Act (*g*) the fee simple in the trustees would have supported contingent limitations that would otherwise have been left at the mercy of the tenant for life (*h*).

3. **Trust to lease, &c. confers fee-simple.** — But if a devise be to trustees and their heirs upon a trust that cannot be executed without an absolute control over the property, as in trust to lease for an indefinite number of years (*i*), or to raise a sum of money by sale (*j*), and subject thereto [\*218] to uses in strict settlement, the trustees will not

(*c*) *Doe v. Hicks*, 7 T. R. 433; *Haddelsley v. Adams*, 22 Beav. 267; as to *Boteler v. Allington*, 1 B. C. C. 72, see *Doe v. Hicks*, 7 T. R. 435, and *Wykham v. Wykham*, 13 Ves. 418; and see *Nash v. Coates*, 3 B. & Ad. 839.

(*d*) *Curtis v. Price*, 12 Ves. 89; but see *Wykham v. Wykham*, 18 Ves. 419, and following pages.

(*e*) *Colmore v. Tyndall*, 2 Y. & J. 605; *Lewis v. Rees*, 3 K. & J. 132; *Cooper v. Kynock*, 7 L. R. Ch. App. 398.

(*f*) *Beaumont v. Marquis of Salisbury*, 19 Beav. 198.

(*g*) 8 & 9 Vict. c. 106, s. 8.

(*h*) *Venables v. Morris*, 7 T. R. 342, 438; and see *Curtis v. Price*, 12 Ves. 100; *Doe v. Hicks*, 7 T. R. 437; *Rochford v. Fitzmaurice*, 1 Conn. & Laws. 169; 2 Dr. & War. 16.

(*i*) *Doc v. Willan*, 2 B. & Ald. 84; but see *Heardson v. Williamson*, 1 Keen, 33; *Ackland v. Lutley*, 9 Ad. & Ell. 879.

(*j*) *Wright v. Pearson*, 1 Eden, 123; *Bagshaw v. Spencer*, 1 Ves. 142; *Glover v. Monckton*, 3 Bing. 13; *Bale v. Coleman*, 2 Eq. Ca. Ab. 309; note (*e*); *Sanford v. Irby*, 3 B. & Ald. 654; *Jones v. Morgan*, 1 B. C. C. 206; for a correct report of the will, see *Fearne's C. R. Appendix*, No. 3. It has been observed in the "Treatise of Powers" (Sug. Pow. 111, 8th edit.), that this rule was not attended to in the case of *Hawker v. Hawker*, 3 B. & Ald. 537. The devise was probably considered to be of a double aspect, viz. to the trustees and their heirs upon trust to sell, &c., if one event happened, and upon trust for the daughter, &c., if another event happened, and as the latter series of limitations took effect, and therefore no power of sale was to be exercised by the trustees, it was not necessary under the circumstances to arm them with the inheritance. The case of *Warter v. Hutchinson*, 5 Moore, 143, 1 B. & C. 721, is more difficult to be